

Master Services Agreement — Skyfall Logistikk AS

(Fictional sample — RAG POC fixture)

This Master Services Agreement (the "Agreement") is entered into on 15 April 2026 (the "Effective Date") between **Nordlys Konsult AS**, organisation no. 999 111 222, with registered office at Storgata 14, 0184 Oslo, Norway (the "Provider"), and **Skyfall Logistikk AS**, organisation no. 912 444 117, with registered office at Bontelabo 2, 5003 Bergen, Norway (the "Customer"). The Provider and the Customer are individually referred to as a "Party" and collectively as the "Parties".

1. Definitions

"Services" means the consulting, integration, and managed-platform services described in Schedule A.

"Deliverables" means any reports, software artefacts, or documentation produced by the Provider under this Agreement.

"Confidential Information" means any non-public information disclosed by one Party to the other and marked or reasonably understood as confidential.

"Service Credit" means a monetary credit applied against future invoices as compensation for SLA breaches per Section 5.

"Incident" means any unplanned interruption to or reduction in the quality of the Services.

2. Scope of Services

The Provider shall deliver the Services described in Schedule A in accordance with the timelines and acceptance criteria set out therein. Any change in scope shall be documented in a written change order, signed by authorised representatives of both Parties.

3. Payment Terms

3.1 Fees. In consideration of the Services, the Customer shall pay the Provider the fees set out in Schedule B. All fees are stated in EUR and are exclusive of value-added tax, which shall be added at the applicable rate.

3.2 Invoicing cadence. The Provider shall invoice the Customer monthly in arrears, on or before the fifth (5th) business day of the following month.

3.3 Payment due date. All undisputed invoices shall be paid within **45 calendar days** of the invoice date ("NET-45"). Payment shall be made by electronic bank transfer to the account designated by the Provider on the invoice.

3.4 Late payment. Undisputed invoices not paid by the due date shall accrue interest at the rate of **8.50% per annum**, calculated daily from the day after the due date until payment is received. The Provider may additionally charge a flat administrative fee of **EUR 75** per reminder issued, up to a maximum of three reminders per invoice.

3.5 Disputed amounts. The Customer shall notify the Provider in writing of any disputed invoice amount within fifteen (15) calendar days of the invoice date. Undisputed portions shall be paid in accordance with Section 3.3.

3.6 Currency. Fees are denominated in EUR. The Customer shall bear any bank charges or foreign-exchange spreads associated with payments made from a non-EUR account.

4. Fee Summary (extract from Schedule B)

Service line	Unit	Rate (EUR, ex. tax)
Implementation engineer	per hour	175
Solution architect	per hour	215
Managed logistics API — standard	per month	4 800
Managed logistics API — high-throughput	per month	12 500
After-hours dispatch support	per incident	650

5. Service Level Agreement

5.1 Availability target. The Provider shall ensure that the production environment of the managed platform achieves at least **99.5% monthly availability**, measured as a percentage of total minutes in a calendar month excluding scheduled maintenance windows notified at least 72 hours in advance.

5.2 Service Credits. Where monthly availability falls below the target in 5.1, the Customer shall be entitled to Service Credits applied against the next monthly invoice, calculated as follows:

Monthly availability	Service Credit (% of monthly platform fee)
< 99.5% and >= 98.5%	4%
< 98.5% and >= 95.0%	12%
< 95.0%	25%

6. Error Codes and Incident Response

The managed-platform API surfaces structured error responses. The following table enumerates the codes the Provider commits to monitor and respond to in accordance with the response times in Section 5. Codes are returned in the `error.code` JSON field and accompanied by the indicated HTTP status. Customer integrations should treat any code prefixed SVC- as recoverable unless otherwise stated in the description.

Code	HTTP	Severity	Description	Initial response
SVC-100	401	Low	Missing bearer token on inbound request.	Self-service; reissue token via portal.
SVC-110	403	Low	Token scope insufficient for requested operation	Self-service; request scope expansion.
SVC-220	429	Medium	Request rate exceeded contractual ceiling (1 000 req/min)	Back-off; auto-recovers within one minute.
SVC-301	504	High	Upstream warehouse-management system unreliable	Available on-call paged within 20 minutes.
SVC-410	500	High	Shipment label generation failure (renderer crash)	Provider on-call paged within 20 minutes.
SVC-900	503	Critical	Logistics orchestration plane offline across regions	Incident commander engaged within 10 minutes.

6.1 Escalation. Incidents resulting in any code with severity "Critical" shall additionally be communicated by telephone to the Customer's designated incident contact within thirty (30) minutes of detection. Codes of severity "High" shall be acknowledged in the Provider's ticketing system within fifteen (15) minutes.

7. Confidentiality

Each Party shall hold the other Party's Confidential Information in strict confidence and shall not disclose it to any third party without the other Party's prior written consent, except as required by applicable law. The obligations of this Section 7 shall survive termination of this Agreement for a period of five (5) years.

8. Data Processing

Where the Provider processes personal data on behalf of the Customer in the course of providing the Services, the Parties shall execute a separate Data Processing Agreement (DPA) prior to the commencement of such processing. The DPA shall comply with the requirements of the EU General Data Protection Regulation 2016/679 and the Norwegian Personal Data Act.

9. Term and Termination

9.1 Initial term. This Agreement shall commence on the Effective Date and continue for an initial term of **12 months**, after which it shall automatically renew for successive twelve (12)-month periods unless either Party gives notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

9.2 Termination for cause. Either Party may terminate this Agreement with immediate effect upon written notice if the other Party (a) commits a material breach not cured within thirty (30) days of written notice; or (b) becomes insolvent, files for bankruptcy, or ceases to carry on business.

10. Limitation of Liability

Each Party's aggregate liability arising out of or in connection with this Agreement, whether in contract, tort, or otherwise, shall not exceed the total fees paid or payable by the Customer under this Agreement during the twelve (12) months immediately preceding the event giving rise to the claim. Neither Party shall be liable for any indirect, incidental, or consequential damages.

11. Governance and Dispute Resolution

The Parties shall hold a quarterly governance meeting to review Service performance, open incidents, and commercial matters. Any dispute not resolved through the governance forum within thirty (30) days shall be referred to the chief executive officers of each Party for further negotiation. Disputes not resolved within sixty (60) days of such referral shall be finally settled by arbitration in **Bergen** under the rules of the Bergen Chamber of Commerce.

12. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Norway, without regard to its conflict-of-laws provisions. The Parties consent to the exclusive jurisdiction of the Norway courts for any matter not subject to arbitration under Section 11.

Signed for and on behalf of the Parties:

Nordlys Konsult AS (Provider)

Skyfall Logistikk AS (Customer)

Name: Astrid Lien

Title: CEO

Date: _____

Name: Ingvild Solberg

Title: CEO

Date: _____